Revision Date:
May 1, 2024

Background:
Notices of Action (NOA) are written notices that inform customers of intended county actions regarding their application or case. NOAs must be adequate, language-compliant, timely with certain exceptions, and may be sent by mail or via electronic notification.

Purpose:
This section outlines CalWORKs policies on NOA requirements. The purpose of this revision is for sunset review. There is no policy change.

Policy:
Each NOA must include information that is sufficient for the customer to determine what the issue is, be able to understand the county's intended action, and decide if a request for a hearing is needed. Each NOA must include the NA Back 9.

The NOA must provide case-specific information regarding the facts that were used in the eligibility determination, and a budget showing the calculation of the payment amount, if applicable.

Readability
NOAs must be written in clear, nontechnical language. Turner v. McMahon requires all NOAs to be written at a 6th grade level to be understandable. Only State-issued NOAs or substitutions that have been approved by the State are to be used.

Language Compliance and Disability Access
NOAs must be provided in the customer's primary language when available. Information that is added in the NOA, must also be in the customer's primary language.

If the NOA is not available in the customer's primary language, the English NOA is to be provided with the Notice of Language Services form (GEN 1365) and a county contact number. Interpretive services are to be offered and provided to the customer.

Reasonable accommodations and assistance must be provided when a customer has a disability. Refer to Eligibility Policy and Procedure Guide (EPPG) *Civil Rights, Language Services, and Disability Accommodations* for more information.

Adequate Notice
Adequate Notice is a written notice to the customer that:
- Informs the customer of the intended county action and specific reason(s) for the action.
- References the applicable state or federal regulation(s) that support the intended action.
- Advises of the customer's right to request a state hearing.
- Describes the circumstances for which Aid Paid Pending (APP) may be issued.
- Notifies that APP must be repaid if the county action is upheld.

The NOA must also inform the customer of what information or action is needed, when appropriate, to re-establish eligibility or determine the correct amount of aid.

Adequate notice must be provided when:
- Aid is granted or increased.
- Aid is denied, decreased, not changed following a mid-period report or redetermination, cancelled, suspended, or discontinued.
- There is a demand for repayment of CalWORKs or supportive services overpayment.
- Actions are taken after a customer has conditionally withdrawn a request for a state hearing.
- Immediate Need (IN) request is denied.
- Compliance actions are taken regarding a state hearing decision.
- There is a change to the manner or form of payment to a vendor payment.

Timely Notice

Timely notice is a written notice that is mailed to the customer at least 10 calendar days before the effective date of the action. The 10-day period does not include the NOA mailing date or the effective date of the action.

For Employment Services, the timely notice requirement is 30 calendar days to inform a customer of an impending sanction due to failure or refusal to comply with program requirements. An additional 10-day NOA is not needed when proceeding with a sanction after an unsuccessful Compliance Plan. Refer to CalWORKs Program Guide (CPG) 10-025.A *Employment Services Noncompliance and Sanctions* and associated processing guides for more information.

Timely notice must be provided for any actions that would result in discontinuance, suspension, cancellation, or decrease of aid, as well as any changes in the manner or form of payment to a vendor payment, with certain exceptions.

Timely notice is not required when:
- CalWORKs is restored following a SAR 7 discontinuance, even if there is a decrease in aid.
- The county received factual information confirming the death of a customer.
- The customer has provided a signed written statement indicating aid is no longer requested.
- The customer has provided a signed written statement with information that would result in a decrease or discontinuance of aid and indicates in writing that they understand the consequence of providing such information.
- An aided child is removed from the home due to foster care placement.
- Aid has been approved in a new jurisdiction and has been verified.
- Granted special allowance ends, and the customer was notified in writing at the time of approval that the allowance would stop at the end of the specified period.
- Mismanagement of funds has occurred. Refer to CPG 44-200.D *Homeless Assistance*, CPG 44-200.E *Temporary Homeless Assistance*, and CPG 44-200.F *Permanent Homeless Assistance* for more information.
- There is no change to the aid amount as a result of a mid-period report. The No Change NOA is to be sent as soon as administratively possible, but no later than 30 days from the date of the report.

When timely notice is not required, adequate notice must be provided no later than the effective date of the intended action unless otherwise specified.

Timely Notice Waiver
Customers may waive the 10-day notice requirement to avoid incurring an overpayment per CPG 44-350.A *Overpayment*. Timely notice is required until the signed waiver request is received from the customer.

Discontinuance Request
Customers may request to discontinue their aid for the entire Assistance Unit (AU) or for an optional member at any time. Discontinuance requests received verbally require adequate and timely notice. On the other hand, written requests require only adequate notice to inform that aid for the AU or optional member will be discontinued at the end of the month in which the written request is received.

Impacts:
CalFresh: CFPG 63-303
Stage One Child Care: CPG 10-010.F
Medi-Cal: MPG 04.17
Cash Assistance Program for Immigrants (CAPI): CAPI PG 99-106.2
General Relief: GRPG 90-600.5
County Medical Services (CMS): CMSPG 02.10, 15.01

References:
MPP 22-001, 22-071, 22-072, 40-173
ACIN I-02-14
ACL 03-15, 13-61, 21-104

Sunset Date:
This policy will be reviewed for continuance by May 31, 2027.

Approval for Release:



Rick Wanne, Director
Self Sufficiency Services